

2014 SCC OnLine All 81

(BEFORE A.P. SAHI AND ANIL KUMAR AGARWAL, JJ.)

Iftakhar Ahsan

v.

State of U.P. and others

Civil Misc. Writ Petition No. 71425 of 2013

Decided on January 3, 2014

Hon'ble A.P. Sahi, J

Hon'ble Anil Kumar Agarwal, J

Heard Sri. Rajesh Yadav, learned counsel for the petitioner, and Sri. Pranjal Mehrotra for the respondent - Corporation.

The petitioner claims himself to be the occupier of a premises where he has applied for an electricity connection under The Electricity Supply Code, 2005.

The contention raised by Sri. Rajesh Yadav is primarily founded on the strength of a judgment of the Division Bench in *Rajesh Kumar Gupta v. State of U.P.*, 2005 (1) AWC 474, copy of which is Annexure-5 to the writ petition.

Learned counsel for the petitioner submits that inspite of the application having been filed and inspite of the fact that there is an interim injunction in favour of the petitioner by the trial court in a dispute with the petitioner and his landlord, the electricity connection has not been given till date, as such, the present writ petition has been filed with a prayer that a mandamus be issued to the respondent No. 2 - Executive Engineer to consider the claim of the petitioner and pass an appropriate order on the request for grant of electricity connection.

We have gone through the judgment as relied upon by the learned counsel for the petitioner where it has been held that according to the then existing provisions and in view of the temporary injunction granted in favour of the tenant in that case it was found that the electricity department could not have refused to grant electricity connection to the petitioner therein. Consequently, the petition was allowed after having considered the provisions of The Electricity Act, 2003, and the existing Rules as were then applicable.

Sri. Pranjal Mehrotra has invited the attention of the Court to clause 4.4

of Electricity Supply Code, where according to this code, which has been promulgated in 2005, the owner's consent for getting a new supply connection is mandatory.

There is no challenge raised or reference made by the petitioner to the aforesaid clause which has been enforced in 2005. The judgment, which has been relied upon by the petitioner, therefore, does not come to his aid as the said judgment was delivered in view of the provisions that were then in existence.

Consequently, in view of the new provisions as have come into existence under clause 4.4(a)(vi) of the 2005 Code, the claim of the petitioner cannot be considered unless there is a consent of the owner of the premises which requirement has to be fulfilled in terms of the said Code. Consequently, reliance placed by the learned counsel for the petitioner on the division Bench judgment does not come to the aid of the petitioner. Even otherwise, the petitioner has not arrayed the landlord as a party to this petition.

Consequently, a writ of mandamus as prayed for cannot be issued in view of the statutory provisions as referred to herein above, but in the event if there is any other provision apart from the aforesaid Regulations as pointed out by the learned counsel for the respondents, it shall be open to the petitioner to approach the authority concerned for the redressal of his grievances or seek his remedy in the suit itself.

With the aforesaid observations, the writ petition is consigned to records.

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